



CHAPTER xxxii

An Act to authorise the lord mayor aldermen and burgesses of the city of Bristol to increase the maximum rates dues tolls and charges leviable in respect of their dock undertaking to confer further powers upon them with reference to their dock undertaking to enact provisions with respect to the superannuation of certain officers servants and others to make further provision for the health improvement local government and finances of the city and for other purposes. [1st August 1951.]

WHEREAS the city and county of Bristol (hereinafter in this Act referred to as "the city") is a county borough under the government of the lord mayor aldermen and burgesses of the city (hereinafter in this Act referred to as "the Corporation") acting by the council of the city:

And whereas the Corporation are the owners of the docks known respectively as the City Docks the Avonmouth Docks and the Portishead Docks and also are both the port and harbour authority of the port and harbour of Bristol:

And whereas the rates dues tolls and charges which the Corporation may levy and charge in respect of vessels and goods and of various other matters and things and of various services rendered by them in connection with the dock undertaking (as hereinafter in this Act defined) are for the most part limited by the Bristol Dock Acts 1848 to 1938 or some of those Acts and the Acts incorporated with or referred to in those Acts respectively to certain specified maxima and it is expedient that the said maxima should be increased as by this Act provided and that the powers of the Corporation under

1 & 2 Geo. 5.
c. xlv.

the Bristol Corporation Act 1911 with respect to the levying of a minimum tonnage due should be extended to enable such a charge to be made in respect of any vessel entering or leaving the port and harbour of Bristol:

And whereas by the Bristol Dock Acts 1848 to 1938 the grant by the Corporation of a licence in respect of certain vessels using the port and harbour of Bristol is required and the Corporation are empowered to charge certain fees in respect of those licences:

And whereas it is expedient to revise the code relating to the licence fees and to increase the amounts at present chargeable in respect of certain types of vessels:

43 Geo. 3.
c. cxl.

And whereas by virtue of powers conferred by an Act passed in the forty-third year of the reign of His late Majesty King George the Third intituled "An Act for improving and rendering more commodious the port and harbour of Bristol" two locks known respectively as Bathurst Lock and Totterdown Lock were constructed for passing vessels to and from the new cut from or to the part of the harbour known as Bathurst Basin in the case of Bathurst Lock and the floating harbour in the case of Totterdown Lock:

And whereas as in the case of each lock there is an alternative method of obtaining access to the floating harbour and it has ceased to be necessary to maintain either lock for the purposes of navigation it is expedient that the Corporation should be empowered to abandon and discontinue both the said locks and in connection therewith to construct such works as are by this Act authorised:

60 & 61 Vict.
c. ciii.

And whereas by virtue of powers conferred on the Corporation by the Bristol Dock Act 1897 two swing bridges known as the Ashton swing bridge and the Vauxhall swing bridge were constructed across the river Avon:

And whereas it is expedient to relieve the Corporation of the obligations imposed by the said Act of 1897 with respect to opening the said bridges and with respect to other matters connected therewith:

And whereas it is expedient to confer on the Corporation such other powers in relation to the dock undertaking and in their capacity as the port authority as are in this Act contained:

1 Edw. 8. &
1 Geo. 5.
c. 68.

And whereas the Corporation are maintaining a superannuation fund under the Local Government Superannuation Act 1937 and it is expedient that the provisions contained in this Act relating to the making of additional provision for the dependants of employees of the Corporation should be enacted:

And whereas under an admission agreement made under the Local Government and other Officers' Superannuation Act 1922 the employees of the former River Avon (Bristol) Catchment Board were contributing to the superannuation fund maintained by the Corporation and it is expedient that notwithstanding the provision to the contrary contained in the River Boards Act 1948 the employees of the Bristol Avon River Board should contribute to the said fund:

12 & 13 Geo. 5.
c. 59.11 & 12 Geo. 6.
c. 32.

And whereas it is expedient to make further and better provision for the health local government improvement and finances of the city (including the finances of the dock undertaking):

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the alterations of works by this Act authorised and showing also the limits within which those alterations may be carried out together with a book of reference to the lands on which those alterations may be carried out containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of all such lands and describing the same have been deposited with the town clerk of the city and are in this Act respectively referred to as the deposited plans sections and book of reference:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

23 & 24 Geo. 5.
c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

1. This Act may be cited as the Bristol Corporation Act 1951 and—

Short and
collective
titles.

(a) the Bristol Dock Acts 1848 to 1938; and

(b) Part II (Dock undertaking) and so much of Part I (Preliminary) Part IV (Finance) and Part VI (General) of this Act as relates to the said provisions of the said Part II;

may be cited together as the Bristol Dock Acts 1848 to 1951.

PART I
—cont.Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
 Part II.—Dock undertaking.
 Part III.—Superannuation.
 Part IV.—Finance.
 Part V.—Miscellaneous.
 Part VI.—General.

Incorporation
of Harbours
Act 1847.

3. The provisions of the Harbours Act 1847 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act with the following exceptions and modifications:—

- (a) the definition of the word “vessel” in section 3 (Interpretations in this and the special Act) of the said Act shall be deemed to include a seaplane on the surface of the water:

Provided that nothing in the said Act shall require or authorise the harbour master to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane;

- (b) the definition of the word “rate” in the said section 3 shall be deemed to include the licence fees chargeable by the Corporation under section 7 (Licences) of this Act;
- (c) sections 12 and 13 sections 16 to 19 and sections 25 and 26 of the said Act shall not be incorporated with this Act.

Interpretation.

4.—(1) In this Act the following words and expressions have the several meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

16 & 17 Geo. 5.
c. xcix.

“the Act of 1926” means the Bristol Corporation Act 1926;

“the Act of 1933” means the Local Government Act 1933;

26 Geo. 5.
& 1 Edw. 8.
c. 49.

“the Act of 1936” means the Public Health Act 1936;

1 & 2 Geo. 6.
c. lxxix.

“the Act of 1938” means the Bristol Corporation Act 1938;

“the city” means the city and county of Bristol;

“the Corporation” means the lord mayor aldermen and burgesses of the city acting by the council;

“the council” means the council of the city;

- “craft” means any boat barge lighter trow pontoon or raft and includes amphibious craft ;
- “the deposited plans” means the plans deposited with the town clerk of the city in relation to the Bill for this Act ;
- “the dock undertaking” means and includes the undertaking carried on by the Corporation upon or in connection with the docks for the time being of the Corporation and the real and personal property railways piers works and appliances acquired appropriated or provided by them for the purposes thereof including any such property as aforesaid which is held by a grantee in fee farm or is leased to or occupied by lessees or tenants of the Corporation ;
- “enactment” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the city ;
- “the general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the city ;
- “the Harbours Act 1847” means the Harbours Docks and Piers Clauses Act 1847 ; 10 & 11 Vict. c. 27.
- “the harbour master” means the several officers of the Corporation having the powers of a harbour master under the Harbours Act 1847 ;
- “the limits of deviation” means the limits of deviation shown on the deposited plans ;
- “the maximum rates” means the rates dues tolls and charges leviable or chargeable by the Corporation in connection with the dock undertaking by virtue of the Bristol Dock Acts 1848 to 1938 or of any one or more of those Acts or any Act incorporated with or referred to in any of those Acts respectively and includes the licence fees chargeable by the Corporation under section 7 (Licences) of this Act ;
- “the Minister” means—
- (a) for the purposes of section 8 (Byelaws for controlling certain craft in the port) section 9 (Further powers to refuse or revoke licences) section 10 (Revision of rates) section 14 (As to vessels in which the Crown have an interest) section 15 (Extension of section 13 of the Act of 1926) section 17 (As to certain powers of Minister under Merchant Shipping Act 1894) and section 36 (Inquiries by Minister) of this Act the Minister of Transport ; and

PART I
—cont.

(b) in all other cases the Minister of Local Government and Planning ;

“ the port ” means the port and harbour of Bristol being the area described in the Third Schedule to the Act of 1938 ;

38 & 39 Vict.
c. 83.

“ statutory securities ” means any securities in which trustees are for the time being authorised by law to invest trust money and any mortgages bonds debentures debenture stock stock or other securities created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery ;

“ vessel ” includes any ship craft or any seaplane on the surface of the water.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

DOCK UNDERTAKING

Increase of
rates.

5.—(1) The maximum rates are hereby respectively increased by an amount equal to thirty-three and one-third per centum of the respective amounts thereof and the Corporation may levy or charge such increased rates accordingly :

Provided that nothing in this subsection shall interfere with or affect any rights of the Corporation with reference to the amount of any rates dues tolls or charges leviable or chargeable by them for which no maximum is prescribed by the Bristol Dock Acts 1848 to 1938 or by the Acts incorporated with or referred to in those Acts respectively.

9 & 10 Geo. 5.
c. xii.

(2) Section 5 (Provision in case of future purchase) of the Bristol Corporation Act 1919 is hereby repealed.

Increase of
minimum
tonnage due.

6.—(1) As from the date of the passing of this Act the tonnage due payable in respect of any vessel entering or leaving the port shall be not less than ten shillings for each such vessel.

(2) The Second Schedule to the Bristol Corporation Act 1911 shall be read and have effect as if the words “ (Provided that the tonnage dues payable in respect of any vessel on which the last-mentioned rates of tonnage are chargeable shall not be less than 5s.) ” were omitted therefrom.

Licences.

7. As from the first day of May one thousand nine hundred and fifty-two—

(a) The Act of 1926 shall be read and have effect as if the word “ craft ” as defined in this Act were substituted

for the meaning assigned to that word by section 4 (Interpretation of terms) of the Act of 1926 ;

(b) In relation to craft to which section 8 (Byelaws for controlling certain craft in the port) of this Act applies section 64 (Craft not to be navigated in dock area unless licensed) of the Act of 1926 shall be read and have effect as if in subsection (1) thereof after the words “or navigated,” there were inserted the words “or moored” ;

(c) (i) The words “port (as defined in the Bristol Corporation Act 1951)” shall be substituted for the expression “dock area” in the said section 64 section 66 (Power to inspect &c. craft) section 70 (Penalty for working or navigating craft contrary to Act) and section 71 (Penalty where fictitious particulars exhibited on craft) of the Act of 1926 in every place where that expression occurs and so much of the said section 4 as interprets the expression “the dock area” shall be repealed ;

(ii) Subsection (1) of the said section 64 shall be read and have effect as if at the end thereof there were inserted the words “Provided that this subsection shall not apply to a craft to which section 8 (Byelaws for controlling certain craft in the port) of the Bristol Corporation Act 1951 applies during any period of exemption permitted by a byelaw made under the said section 8” ;

(iii) Subsection (2) of the said section 64 shall be read and have effect as if after the word “shall” in the second place where that word occurs there were inserted the words “(subject to the provisions of section 7 (Licences) and of section 8 (Byelaws for controlling certain craft in the port) of the Bristol Corporation Act 1951)” ;

(d) On receipt of an application for a licence under the said section 64 in respect of a craft to which the said section 8 applies the Corporation may grant either an annual licence for a period of twelve months ending on the thirtieth day of April in each year or a licence for such less period as they may determine and may demand and take therefor in the case of the first-mentioned licence a fee of such amount (not exceeding that specified in the schedule to this Act in respect of the class or type to which the craft belongs) as they think fit and in the case of the secondly mentioned licence such amount as represents the appropriate proportion of the amount which would have been payable had an annual licence been granted or an amount of five shillings whichever shall be the greater ;

PART II
—cont.11 & 12 Vict.
c. xliii.6 Edw. 7.
c. cc.44 & 45 Vict.
c. clxviii.Byelaws for
controlling
certain craft
in the port.

- (e) An application under the said section 64 shall be accompanied by such particulars relating to the craft in respect of which the application is made as the Corporation may reasonably require ;
- (f) Section 24 (Licenses to be granted for using boats) section 25 (Penalty for navigating boats without a license) and section 26 (On proof of illegal practices by masters of licensed boats licenses to be taken away) of the Bristol Dock Act 1848 shall be repealed ;
- (g) Subsection (1) of section 31 (Limiting period for vessels to remain in docks) of the Bristol Corporation Act 1906 shall be read and have effect as if the words “ (not being a craft (as defined in the Bristol Corporation Act 1951) to which section 8 (Byelaws for controlling certain craft in the port) of that Act applies) ” were inserted after the words “ No vessel ” ;
- (h) Section 6 (License fees on vessels in harbour &c.) of the [Bristol Dock Act 1881 shall not apply to any craft to which the said section 8 applies and the Second Schedule to the said Act of 1881 shall be read and have effect as if the words “ For every steam passenger vessel plying for hire or used for the conveyance of passengers in the Corporation docks any sum not exceeding twenty pounds per annum ” were omitted therefrom.

8.—(1) For the purpose of controlling within the port any craft to which this section applies and notwithstanding anything contained in the Bristol Dock Acts 1848 to 1938 the Corporation may make byelaws with respect to all or any of the following matters:—

- (a) prohibiting the use navigation or mooring of craft to which this section applies within any area or areas defined in the byelaws except with the consent of the harbour master upon such conditions as he may reasonably require ;
- (b) specifying as a condition of the grant of any licence the part or parts of the port within which the craft in respect of which the licence is granted may be moored and the part or parts of the port within which such craft may be used or navigated ;
- (c) prescribing a minimum age below which the owner of a craft to which this section applies will not be eligible for the grant of a licence in respect of his craft ;
- (d) prohibiting the use navigation or mooring within the port of any craft to which this section applies which is not suitable for use within the port ;

(e) prescribing the maximum period during which a craft to which this section applies may remain in the port without a licence ;

(f) prescribing the conditions upon which the Corporation may impound any craft to which this section applies together with the cargo thereof in respect of which—

(i) either no application for a licence has been made or an application has been made and refused and which in either case remains in the port after the expiration of any maximum period prescribed by a byelaw made under paragraph (e) of this subsection ; or

(ii) the provisions of section 65 (Name &c. of craft to be painted thereon) of the Act of 1926 have not been complied with ;

and enabling the Corporation to recover any costs or expenses reasonably incurred by them in impounding any craft as aforesaid or otherwise in carrying into effect or enforcing any byelaws made under this section.

(2) (a) The provisions of the Harbours Act 1847 with respect to the byelaws to be made by the undertakers shall apply to all byelaws made under this section but no byelaw made under this section shall come into operation until it shall have received the confirmation of the Minister which shall be sufficient for all purposes.

(b) In its application to any byelaws made under this section section 84 (Byelaws may be enforced by imposition of penalties) of the Harbours Act 1847 shall be read and have effect as if after the words “ for each breach of such byelaws ” there were inserted the words “ and in the case of a continuing offence a fine not exceeding two pounds for each day on which the offence is continued after conviction thereof ”.

(3) The court may in addition to any other penalty which may be imposed for an offence against a byelaw made under this section—

(a) in any case in which a licence is in force in respect of the craft to which this section applies belonging to the person committing the offence revoke the licence ;

(b) in any case in which such a licence is not in force disqualify the owner of the craft from obtaining a licence in respect of the craft for such period as they think fit.

(4) Byelaws made under this section may apply to any class or classes of craft to which this section applies.

PART II
—cont.8 & 9 Vict.
c. 20.

(5) (a) For the purpose of enabling the Corporation to recover any costs or expenses which under the provisions of any byelaw made under this section they are entitled to recover and notwithstanding anything in this section or in section 33 (Recovery of penalties) of this Act the Corporation shall have the same powers as are conferred on them by section 140 (Damages not otherwise provided for may be determined by them) of the Railways Clauses Consolidation Act 1845 (as incorporated with this Act by virtue of the incorporation of section 92 (Railways Clauses Consolidation Acts 1845 as to damages &c. to be incorporated with this and the special Act) of the Harbours Act 1847) with respect to the recovery of damages costs or expenses.

(b) The said section 140 as so incorporated shall have effect as if the word "goods" included any vessel in respect of which rates or dues are payable under the Bristol Dock Acts 1848 to 1951.

(6) Nothing in this section or in any byelaw made thereunder shall derogate from or affect the powers conferred on the harbour master by the Bristol Dock Acts 1848 to 1951 or by any Act incorporated with any of those Acts.

(7) This section applies to any craft (not being a craft which is solely used as a tug or for the carriage of goods or which customarily carries passengers by sea to and from the port for reward).

(8) In this section the word "licence" means a licence required under section 64 of the Act of 1926.

Further
powers to
refuse or
revoke
licences.

9.—(1) In addition to the powers conferred by section 67 (Power to refuse or revoke licences for craft) of the Act of 1926 the Corporation shall have power to refuse or revoke a licence in respect of any craft to which section 8 (Byelaws for controlling certain craft in the port) of this Act applies which the owner intends to use navigate or moor or which is being used navigated or moored (as the case may be) within the Avonmouth Docks the City Docks or the Portishead Docks of the Corporation.

(2) (a) If the Corporation decide to refuse or to revoke a licence under the powers of the last foregoing subsection they shall send by post to the applicant or to the owner of the craft in respect of which the licence has been granted (as the case may be) notice of their decision.

(b) For the purposes of this subsection a notice shall be deemed to have been served on an applicant or an owner if it is sent by prepaid letter addressed to him at his usual or last known address.

(3) Every such notice shall state the ground or grounds upon which the refusal or revocation is based and the applicant or owner (as the case may be) may within fourteen days after the

receipt of any such notice appeal to the Minister who shall appoint an arbitrator (whose decision shall be final) to hear the appeal.

PART II
—cont.

(4) The costs of the appeal shall be at the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party as a debt either summarily as a civil debt or in any court of competent jurisdiction.

10.—(1) In this section “authorised rates” means the rates Revision of rates.
dues tolls and charges which the Corporation are for the time being authorised to levy charge or make in pursuance of section 5 (Increase of rates) of this Act or any order made under this section.

(2) If it is represented by application in writing to the Minister—

(a) by any chamber of commerce or shipping or any representative body of traders or shipowners ; or

(b) by any person who in the opinion of the Minister has a substantial interest in the trade of the port and is a proper person to make an application ; or

(c) by the Corporation ;

that under the circumstances then existing the authorised rates should be revised in whole or in part the Minister if he thinks fit may make an order revising all or any of the authorised rates referred to in the application and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this subsection.

(3) An application made to the Minister under subsection (2) of this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(4) Where upon an application under subsection (2) of this section for an increase or a decrease of the authorised rates or any of them an order has been made or the Minister has decided not to make an order no further application for an increase or a decrease (as the case may be) of any of the rates to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(5) Before making an order under subsection (2) of this section the Minister shall consult with such bodies or persons as aforesaid as appear to him to be appropriate including the Corporation

PART II
—cont.

where they are not the applicants and for the purpose of ascertaining such bodies or persons may require public notice of the application to be given and where an objection to an application is made by the Corporation or by any such body or person as aforesaid and is not withdrawn the Minister unless it appears to him that the objection is of a trivial nature shall cause an inquiry to be held in reference to the application.

(6) Subject to the proviso to this subsection the Minister shall not by an order under subsection (2) of this section make any such revision of the authorised rates as in his opinion would so far as can be estimated be likely to result in the annual revenue of the Corporation in respect of the dock undertaking being insufficient or more than sufficient to enable the Corporation with efficient management of the dock undertaking to make adequate provision for paying all proper expenses of and connected with the working management and maintenance of the dock undertaking including interest on and provision for repayment of moneys borrowed (regard being had to any capital expenditure which the Corporation may reasonably be expected to incur) making good depreciation providing for any contributions which the Corporation may reasonably and properly carry to any reserve fund renewal fund contingency fund or insurance fund and meeting all other costs charges and expenses if any properly chargeable to revenue (including provision for taxation):

Provided that in any case in which the Minister is satisfied that there are special circumstances affecting the dock undertaking taking into account the financial condition of the undertaking during such period preceding the date on which an application is made under subsection (2) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the Corporation in respect of the dock undertaking being insufficient to enable the Corporation to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(7) The authorised rates as revised by an order under subsection (2) of this section shall not in any case be less than the maximum rates.

(8) The power of the Minister to make an order under subsection (2) of this section shall be exercisable by statutory instrument.

Abandonment
of locks.

11.—(1) The Corporation may abandon and discontinue as a lock each of the locks shown on the deposited plans (that is to say)—

- (a) the lock at the western end of the basin known as Bathurst Basin ;

(b) the lock known as the Totterdown Lock at the western end of the feeder canal joining the river Avon with the floating harbour.

PART II
—cont.

(2) In connection with the abandonment and discontinuance of either of the said locks the Corporation may remove the gates of the lock and for the purpose of impounding the water in the said harbour construct within the limits of deviation relating to the lock such fixed dams walls sluices or other structures as they think fit and may use the lock as so altered for the general purposes of the dock undertaking.

(3) As from the date of abandonment and discontinuance of—

(a) the lock referred to in paragraph (a) of subsection (1) of this section the obligations imposed by any enactment with respect to the admission of ships through the said lock shall cease and determine ;

(b) the lock referred to in paragraph (b) of the said subsection the obligations imposed by any enactment with respect to passing boats barges and other vessels to and from the floating harbour and the river Avon by means of the said lock shall also cease and determine.

12.—(1) Notwithstanding anything in the Bristol Dock Act 1897 the Corporation shall cease to be under any obligation to open either the Ashton swing bridge being Work G authorised by section 6 (Powers for and in relation to the construction of works) of the Bristol Dock Act 1897 or the Vauxhall swing bridge being Work J authorised by the said section. Relief from obligation to open Ashton and Vauxhall swing bridges.

(2) The following provisions of the said Act of 1897 relating to the operation of the said bridges are hereby repealed:—

(a) subsections (2) (3) and (4) of section 18 (With respect to the bridge across the Avon) and in subsection (1) of the said section the word “opening” ;

(b) subsections (2) and (3) of section 19 (With respect to the footbridge across the river Avon) and so much of subsection (1) of the said section as extends and applies subsections (2) and (4) of the said section 18.

13.—(1) Section 12 (Removal of stranded sunk or abandoned vessels) of the Act of 1926 shall apply and have effect— Extension of section 12 of Act of 1926.

(a) so as to enable the Corporation to exercise the powers conferred on them by the said section in relation to a vessel sunk stranded or abandoned in or near to any approach to the port ;

(b) as if the word “vessel” included any aircraft (including a seaplane) ;

PART II
—cont.

(c) as if the word “owner” in relation to any vessel sunk abandoned or stranded in the port or in or near to any approach to the port meant the registered owner of that vessel or if there is no such owner the owner of the vessel at the time of the sinking stranding or abandonment thereof and the word “owner” as defined in this section shall be substituted for “registered owner” in every place in the said section where that expression occurs.

(2) The said section shall also be extended so as to apply to a vessel not registered under the Merchant Shipping Acts 1894 to 1950.

(3) For the removal of doubt it is expressly provided that nothing in this section shall apply to any vessel belonging to His Majesty or held by any person on behalf of or for the benefit of the Crown nor shall any of the powers conferred by the said section 12 as extended by this section so far as those powers relate to a vessel sunk stranded or abandoned in or near to any approach to the port be exercised if by such exercise the Crown would become liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for any expenses incurred by the Corporation except where such consent is given as is provided for in section 14 (As to vessels in which the Crown have an interest) of this Act and the vessel was not such a vessel as is first-mentioned in this subsection at the time of the sinking stranding or abandonment thereof.

As to vessels
in which the
Crown have
an interest.

14.—(1) The Corporation shall before causing the raising removal blowing up or destruction of any vessel sunk stranded or abandoned in or near to any approach to the port under the powers conferred upon them by section 12 (Removal of stranded sunk or abandoned vessels) of the Act of 1926 as extended by the immediately preceding section or by any other enactment give to the Admiralty and to the Minister notice in writing of their intention so to do and if within fourteen days after the receipt of such notice the Admiralty or the Minister gives to the Corporation—

(a) a certificate that the vessel was sunk stranded or abandoned by a person acting on behalf of His Majesty or otherwise by an officer or servant of the Crown acting in the course of his duty as such and that it is not in the national interest that the vessel should be raised removed blown up or destroyed; or

(b) a notice that the exercise by the Corporation of the rights of recovery conferred by subsection (2) of the said section 12 would render the Crown liable directly

or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for all or a substantial proportion of the expense incurred by the Corporation ;

the Corporation shall not without the consent in writing of the authority by whom the certificate was issued or the notice given cause such vessel to be raised removed blown up or destroyed :

Provided that in any case which in their opinion is a case of emergency the Corporation may cause any vessel to be raised removed blown up or destroyed without giving notice of their intentions so to do to the Admiralty or to the Minister and in that event the Corporation shall not be entitled to recover from any person the expenses incurred by them in so doing if the effect of such recovery would be to render the Crown so liable.

(2) If the Corporation shall mark buoy watch light control or give warning to shipping of the presence of any vessel in respect of which the Admiralty or the Minister have refused their consent under subsection (1) of this section the Corporation shall not be entitled to recover the expenses of so doing from the owner of the vessel (as defined in paragraph (c) of subsection (1) of the immediately preceding section).

15.—(1) The powers conferred on the Corporation by section 13 (Further powers to deal with unserviceable vessels) of the Act of 1926 shall be extended so as to enable the Corporation subject to the provisions of this section to exercise the said powers in relation to a vessel to which this section applies and to recover the expenses incurred under the said section 13 or the unsatisfied balance thereof from the owner (as defined in this section).

Extension of
section 13 of
the Act of
1926.

(2) In addition to giving the prescribed notice the Corporation shall affix a copy of the notice to some conspicuous part of the vessel.

(3) (a) The owner of any vessel being a vessel to which this section applies in respect of which the prescribed notice has been given may within fourteen days of the date on which the prescribed notice was last inserted appeal to the Minister on the grounds that the vessel is not a vessel to which this section applies.

(b) On any such appeal the Minister (whose decision shall be final) shall determine whether or not the vessel is a vessel to which this section applies.

(4) In this section “prescribed” means prescribed by section 13 of the Act of 1926 and “owner” means the registered owner of the vessel or if there be no such owner the owner of

PART II
—cont.

the vessel at the time the same shall have become laid by neglected as unserviceable unfit for navigation in a derelict condition or likely to sink or founder or otherwise become a danger or obstruction to navigation within the port (as the case may be).

(5) This section applies to any vessel within the port which is unfit for navigation or in a derelict condition or likely to sink or founder or otherwise become a danger or obstruction to navigation within the port.

Amendment
of section 15
of Bristol
Corporation
Act 1922.
12 & 13 Geo. 5.
c. xxx.

16. Section 15 (Power to expend money in advertising dock undertaking and port of Bristol) of the Bristol Corporation Act 1922 shall be read and have effect as if the words "to an extent not exceeding in any one year the sum of five thousand pounds" were omitted therefrom.

As to certain
powers of
Minister under
Merchant
Shipping
Act 1894.
57 & 58 Vict.
c. 60.

17. For the avoidance of doubt it is hereby declared that nothing in the Bristol Dock Acts 1848 to 1951 affects the powers of the Minister under Part III or Part V of the Merchant Shipping Act 1894.

PART III

SUPERANNUATION

Interpretation
for purposes
of Part III
of Act.

18. In this Part of this Act words and expressions to which meanings are assigned by the Act of 1937 shall unless otherwise expressly provided or the subject or context otherwise requires have the same respective meanings and "the Act of 1937" means the Local Government Superannuation Act 1937.

Allocation
of part of
superannuation
benefits to
dependant.

19. Section 9 (Allocation of part of superannuation benefits to wife or husband) of the Act of 1937 and any rules made by the Minister under that section and for the time being in force shall in their application to the Corporation and to their employees being contributory employees extend and have effect so as to enable—

- (a) a contributory employee who is not for the time being married to surrender in favour of a dependant of the contributory employee such part of his superannuation allowance as would be permissible under the said rules if the dependant was the spouse of the contributory employee ;
- (b) the Corporation to grant to the dependant a pension of such amount as calculated according to the tables prepared by the government actuary or the said tables as modified by the Corporation on the advice of an actuary is actuarially equivalent at the date on which

the contributory employee ceases to be employed by the Corporation to the part of the superannuation allowance surrendered.

PART III
—cont.

20.—(1) Notwithstanding anything in subsection (3) of section 29 (Pension rights) of the River Boards Act 1948 the appropriate superannuation fund for the purposes of the Act of 1937 shall in relation to officers and servants of the Bristol Avon River Board be the superannuation fund maintained by the Corporation. Pension rights of Bristol Avon River Board employees.

(2) This section shall be deemed to have come into force on the first day of April nineteen hundred and fifty.

PART IV

FINANCE

21.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and they shall repay any sum so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act. Power to borrow.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

22.—(1) The Corporation may (if they think fit) establish a fund to be called "the capital fund" to which they may pay— Capital fund.

- (a) any sums derived from the sale of any property of the Corporation (not being a sum derived from the sale of property forming part of the dock undertaking or which under the provisions of the transfer agreement (as defined in the Bristol Transport Act 1937) is required to be added to the renewals fund formed under the said agreement); 1 Edw. 8. &
1 Geo. 6.
c. cxxv.
- (b) the whole or any part of any sum paid to the Corporation under section 23 (Further compensation to local authorities in respect of severance) of the Electricity Act 1947; 10 & 11 Geo. 6.
c. 54.
- (c) the surplus of the revenue income over the revenue expenditure of the general rate fund on the thirty-first day of March in any year; and

PART IV
—cont.

- (d) such other sums from the revenue of the general rate fund (including a sum equal to the interest earned on the capital fund and any income arising from the application of that fund to the purposes authorised) as the council may by resolution direct:

Provided that—

- (i) the aggregate amount paid to the capital fund under paragraphs (c) and (d) of this subsection (in addition to the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of four times the product of a penny rate as ascertained or estimated for the purpose of section 9 (Provisions as to precepts) of the Rating and Valuation Act 1925; and
- (ii) payments into the capital fund shall not be made whenever that fund amounts to five hundred thousand pounds or such greater sum as may from time to time be approved by the Minister; and
- (iii) any sum paid in to the capital fund under paragraph (b) of this subsection shall not be taken into account for the purpose of calculating whether under the preceding paragraph of this proviso any further sum can be paid into the fund.

15 & 16 Geo. 5.
c. 90.

(2) The Corporation may apply the moneys in the capital fund in defraying any expenditure to which capital is properly applicable (other than expenditure in connection with an undertaking from which revenue is derived) or in providing money for repayment of loans (but not in making the annual payment required to be made therefor) Provided that the amount to be expended under this subsection shall not exceed the sum of thirty thousand pounds in any one transaction unless a greater sum shall in any case be allowed by the Minister.

(3) (a) Pending the application of moneys in the capital fund to the purposes authorised by the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of any land of the Corporation which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund may if the Corporation think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation.

(5) Any sum derived from the sale of any corporate land of the Corporation (as defined in section 305 (Definitions) of the Act of 1933) and paid to the capital fund shall not except with the consent of the Minister be applied otherwise than in the purchase or acquisition of other corporate land.

(6) Nothing in this section shall affect the operation of paragraphs (a) (b) or (c) of subsection (1) of section 8 (Use by local authority of moneys forming part of capital funds) of the Local Authorities Loans Act 1945 in any case in which the moneys in the capital fund are used in pursuance of that section. 8 & 9 Geo. 6. c. 18.

23.—(1) Notwithstanding anything to the contrary contained in any enactment all money received or receivable by the Corporation whether on capital or revenue account including (but without prejudice to the generality of this provision)—

(a) all money received or receivable by the Corporation on account of the revenue of any undertaking department or service of the Corporation as from time to time existing from which revenue is derived ; and

(b) interest and other annual proceeds from time to time received or receivable by the Corporation on the investments or balances forming part of any reserve or of any fund or account established for the redemption of debt or of stock or as a repairs renewals depreciation contingency insurance accident consolidated loans working capital or other fund or account together with any income arising from the use or application of moneys in any such reserve or fund or account ;

shall be carried to and form part of the general rate fund and all interest on money borrowed for the purposes of any such undertaking department or service and all other payments and expenses made and incurred by the Corporation in respect of any such undertaking department or service shall be paid out of the general rate fund and the Corporation shall out of the general rate fund place to the credit of the appropriate reserve or fund or account an amount equivalent to the interest and other annual proceeds and income referred to in the foregoing paragraph (b) subject to any prescribed limit on the amount of such reserve or fund or account.

PART IV
—cont.

(2) Nothing in this section shall—

- (a) authorise the Corporation to apply capital money to any purpose other than a purpose to which capital money is properly applicable ;
- (b) prevent the transfer by the Corporation under subsection (2) of section 27 (Dock contingency fund) of this Act to the credit of the dock contingency fund authorised by that section of an amount not exceeding a sum equivalent to the income arising in that year from the investment of money standing to the credit of the dock insurance fund established under section 90 (Dock insurance fund) of the Bristol Corporation (No. 2) Act 1930.

20 & 21 Geo. 5.
c. clxxx.

Accounts.

24.—(1) The Corporation shall notwithstanding anything to the contrary in any enactment keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings departments or services of the Corporation as from time to time existing from which revenue is derived (each of which undertakings departments and services is in this and the next two succeeding sections of this Act separately referred to as “the undertaking”) on the one side all income in respect of the undertaking including any such interest annual proceeds or income as is or are referred to in paragraph (b) of subsection (1) of section 23 (Receipts and expenses) of this Act and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

- (a) the working and establishment expenses and cost of maintenance of the undertaking ;
- (b) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking or used or applied for those purposes in any manner authorised by or by virtue of any enactment ;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys so borrowed or used or applied as aforesaid ;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue (including provision for taxation) ;
- (e) in the case of the dock undertaking the amount (if any) credited to the dock renewal fund authorised by section 59 (Dock renewal fund) of the Act of 1938 ;
- (f) the amount (if any) credited to any reserve or fund or account formed in connection with the undertaking

including in the case of the dock undertaking the amount (if any) credited to the dock contingency fund authorised by section 27 (Dock contingency fund) of this Act ;

(g) any money applied in any of the ways mentioned in section 25 (Application of revenue of undertakings) of this Act.

(2) The Corporation shall show in the accounts relating to the undertaking or to any purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall apportion as they think proper between those accounts or carry to any of them any receipts credits payments debits and liabilities which from time to time ought to be so apportioned or carried.

25. If in any year the moneys received or receivable by the Corporation on account of the revenue of any undertaking department or service of the Corporation as from time to time existing from which revenue is derived including any such interest annual proceeds or income as is or are referred to in paragraph (b) of subsection (1) of section 23 (Receipts and expenses) of this Act exceed the moneys expended or applied by the Corporation in respect of the undertaking for the purposes referred to in paragraphs (a) (b) (c) (d) (e) and (f) of subsection (1) of section 24 (Accounts) of this Act the Corporation may in respect of that year (if they think fit) apply out of the general rate fund such sum as they may determine not exceeding the amount of such excess in any of the following ways :—

(a) in reduction of capital moneys borrowed for the purposes of the undertaking ;

(b) in the renewal and the construction extension and improvement of the works and conveniences for the purposes of the undertaking or otherwise for the benefit of the undertaking.

26.—(1) The Corporation may (if they think fit) provide out of the general rate fund a reserve in respect of any of the undertakings departments or services of the Corporation as from time to time existing from which revenue is derived other than the dock undertaking by setting aside in any year in which the moneys received or receivable by the Corporation on account of the revenue of the undertaking exceed the moneys expended by the Corporation on account of the undertaking in respect of the expenses mentioned in paragraphs (a) (b) (c) and (d) of subsection

Application
of revenue of
undertakings.

Reserves.

PART IV
—cont.

(1) of section 24 (Accounts) of this Act such an amount not exceeding a sum equal to that excess as they may from time to time think reasonable and (unless the amounts so set aside are used or applied in any other manner authorised by or by virtue of any enactment) investing the same in statutory securities until the reserve so provided amounts to the maximum for the time being prescribed by the Corporation.

(2) Any reserve provided under this section and any accretions thereto together with any income arising from the use or application thereof in any manner authorised by or by virtue of any enactment shall be included within and form part of the general rate fund and shall be subject to the provisions of section 23 (Receipts and expenses) of this Act.

(3) Subject as aforesaid any reserve provided under this section may be applied—

- (a) to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is provided ; or
- (b) to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking ; or
- (c) in the renewal and the construction extension and improvement of the works and conveniences for the purposes of the undertaking or otherwise for the benefit of the undertaking ;

and so that if that reserve be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Any reserve or renewal contingency depreciation or other similar fund which has been formed for the purposes of the undertaking (other than the dock undertaking) and which is in existence at the date of the passing of this Act shall be carried to and shall be deemed to be part of a reserve provided under this section.

(5) Resort may be had to a reserve provided under this section although such reserve may not at the time have reached or may have been reduced below the prescribed maximum.

Dock
contingency
fund.

27.—(1) The Corporation may (if they think fit) provide a contingency fund in respect of the dock undertaking by setting aside out of the general rate fund in any year in which the moneys received by the Corporation on account of the revenue of that undertaking exceed the moneys expended by the Corporation in respect of that undertaking in respect of the expenses

mentioned in paragraphs (a) (b) (c) (d) and (e) of subsection (1) of section 24 (Accounts) of this Act such an amount as they may from time to time determine but not exceeding the amount of that excess.

(2) In addition to the powers of the Corporation under subsection (1) of this section they may also set aside out of the general rate fund and transfer to the credit of the said contingency fund such an amount not exceeding a sum equivalent to the income arising in that year from the investment of moneys standing to the credit of the dock insurance fund established under section 90 (Dock insurance fund) of the Bristol Corporation (No. 2) Act 1930 as the Corporation may from time to time determine and such further amount as they think fit being an amount received in respect of the dock undertaking which in their opinion is available for the purpose.

(3) The contingency fund authorised by this section shall be applicable from time to time in or towards—

- (a) answering any deficiency at any time happening in the revenue received in respect of the dock undertaking ; or
- (b) meeting any extraordinary claim or demand at any time arising against the Corporation with respect to the dock undertaking ; or
- (c) defraying the cost of constructing extending or improving works or conveniences for the purposes of the dock undertaking ; or
- (d) making good any loss sustained by the Corporation by or in consequence of the loss or destruction (by any means whatsoever) of or injury to any building or work or any other property of any description comprised in the dock undertaking ; or
- (e) providing a fund for working capital for the purposes of the dock undertaking.

(4) Pending the application of the said contingency fund to the purposes authorised by subsection (3) of this section the moneys standing to the credit of that fund unless used or applied in any other manner authorised by or by virtue of any enactment may be invested in statutory securities.

(5) The contingency fund authorised by section 57 (Dock contingency fund) of the Act of 1938 and the investments forming part and the moneys standing to the credit of that fund shall be carried to and form part of the contingency fund authorised by this section.

28. Section 59 (Dock renewal fund) of the Act of 1938 shall be read and have effect as if in subsection (1) the words “not exceeding ten thousand pounds” were omitted therefrom and at the end thereof were added the words “having regard to the liabilities which may have to be met from the fund”.

Amendment
of section 59
of the Act
of 1938.

PART IV
—cont.

Date of
operation of
certain sections
of Part IV of
Act and repeal
of certain
financial
provisions.

29.—(1) The following sections of this Act (namely):—

Section 23 (Receipts and expenses);

Section 24 (Accounts);

Section 25 (Application of revenue of undertakings);

Section 26 (Reserves);

Section 27 (Dock contingency fund); and

Section 28 (Amendment of section 59 of the Act of 1938);

shall be deemed to have come into operation on the first day of April one thousand nine hundred and fifty-one.

(2) The following provisions of the Act of 1938 are hereby repealed as from the first day of April nineteen hundred and fifty-one:—

Section 51 (Receipts and expenses);

Section 52 (Accounts);

Section 53 (Application of revenue of undertakings);

Section 54 (Reserves);

Section 55 (Working capital in respect of electricity undertaking);

Section 56 (Surplus electricity revenue); and

Section 57 (Dock contingency fund).

PART V

MISCELLANEOUS

Establish-
ments
donations
etc. for benefit
of employees
and others.

30.—(1) (a) The Corporation may (if they think fit) establish and maintain for their employees medical and first-aid posts and establishments for their social well-being (including washing and drying accommodation canteens clubs and recreation grounds).

(b) The services and establishments which the Corporation are empowered to provide under paragraph (a) of this subsection may be made available for persons employed in connection with the dock undertaking notwithstanding that such persons are not employed by the Corporation.

(c) The Corporation may make it a condition of using any establishment provided under paragraph (a) of this subsection in respect of which some financial contribution should in their opinion be made by those for whom it is provided that any person using that establishment should make such payment as the Corporation may from time to time determine.

(2) The Corporation may subscribe or make donations to convalescent homes and other institutions and to the benevolent and sick funds of their employees and may also make donations for any other purpose from which any large number of their employees are likely to derive benefit:

Provided that the amount expended by the Corporation under the powers of this subsection shall not exceed the sum of one thousand pounds in any year.

PART V
—cont.

31.—(1) The council may (if they think fit) resolve that on and after a date to be specified in their resolution the cost of providing maintaining and renewing dustbins in the city or any part thereof for the deposit or collection of house refuse from dwelling-houses shall be paid out of the general rate fund as part of the expenses of the general rate. Cost of provision maintenance and renewal of dustbins.

(2) After such date as the council may by resolution determine all dustbins at any time in use in the city or in such part thereof as may be specified in such resolution for the deposit or collection of house refuse from any dwelling-house shall be or become the property of the Corporation.

(3) In any case in which a dustbin being the property of the Corporation or the cover of such dustbin requires repair or renewal for any reason (other than fair wear and tear) the Corporation may recover the costs and expenses of such repair or renewal from the occupier of the dwelling-house in respect of which the dustbin was supplied summarily as a civil debt.

(4) Section 95 (Regulation dustbins) of the Act of 1926 (except subsection (4) thereof) is hereby repealed.

(5) If the council pass a resolution in accordance with the provisions of subsection (1) of this section then so long as such resolution remains in force section 75 (Regulation dustbins) of the Act of 1936 in so far as it enables the Corporation to require the provision of one or more covered dustbins by an owner or occupier of a dwelling-house shall on and after the date specified in such resolution cease to have effect in the city or in such part thereof as may be specified in such resolution.

32. The Corporation and the British Electricity Authority may enter into agreements for the sale lease or otherwise disposal of land situated at Portishead and held by the Corporation in connection with the dock undertaking on such terms and conditions as may be agreed between the parties. Agreement with British Electricity Authority as to land at Portishead.

PART VI

GENERAL

33.—(1) All penalties and forfeitures recoverable under any byelaw made in pursuance of section 8 (Byelaws for controlling certain craft in the port) of this Act may be recovered in a summary manner. Recovery of penalties.

(2) Any costs or expenses recoverable as aforesaid may be recovered summarily as civil debts where the amount recoverable does not exceed twenty pounds.

PART VI
—cont.

Restriction
on right to
prosecute.

34. Proceedings in respect of an offence created by or under any byelaw made in pursuance of section 8 (Byelaws for controlling certain craft in the port) of this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation.

Expenses and
charges to be
settled by
court.

35. Where any expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence under any byelaw made in pursuance of section 8 (Byelaws for controlling certain craft in the port) of this Act the amount of such expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Inquiries by
Minister.

36. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred upon him or the giving of any consent or approval under section 8 (Byelaws for controlling certain craft in the port) section 10 (Revision of rates) section 14 (As to vessels in which the Crown have an interest) or section 15 (Extension of section 13 of the Act of 1926) of this Act and section 290 (Powers of government departments to direct inquiries) of the Act of 1933 shall apply accordingly.

Application
of provisions
of Act
of 1936.

37. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 284 (Authentication of documents);

Section 286 (Proof of resolutions &c.);

Section 304 (Judges and justices not to be disqualified by liability to rates); and

Section 328 (Powers of Act to be cumulative).

Saving for
town and
country
planning.
10 & 11 Geo. 6.
c. 51.

38. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

39. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund.

SCHEDULE

LICENCE FEES PAYABLE IN RESPECT OF CRAFT TO WHICH SECTION 8 OF THIS
ACT APPLIES

Class or type of craft	Not exceeding for a period of twelve months ending on 30th April
	£ s. d.
Open boats canoes and other craft manually propelled and having no other means of propulsion—	
For each such craft used navigated or moored solely in the tidal waters of the port below Netham dam	5 0
For each such craft not used navigated or moored solely in the tidal waters of the port below Netham dam	1 0 0
Motor and sailing boats and other craft not manually propelled or in respect of which no licence fee is otherwise prescribed—	
For each such craft used navigated or moored solely in the tidal waters of the port below Netham dam	10 0
For each 10 feet (or part thereof in length) of any such craft not used navigated or moored solely in the tidal waters of the port below Netham dam	1 1 0
Passenger vessels plying for hire or used for the conveyance of passengers for reward—	
For each such vessel—	
Not exceeding 25 feet in length	5 0 0
Exceeding 25 feet but not exceeding 50 feet in length	10 0 0
Exceeding 50 feet in length	10 0 0
	with an additional fee of £4 0s. 0d. in respect of every 10 feet or part thereof in excess of 50 feet in length.
Flatters and rafts—	
For each flatter or raft—	
Not exceeding 150 square feet in superficial area	10 0
Exceeding 150 square feet	10 0
	with an additional fee of 2s. 0d. in respect of each square foot or part thereof in excess of 150 square feet.
Barges and pontoons used as stages—	
For each such barge or pontoon	5 0 0
Crane barges and elevators—	
For each such crane barge or elevator	5 0 0

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